

21. 9:01 AM CASE NUMBER: C25-00985

CASE NAME: CHASE MOUTON VS. HUAN LI

***HEARING ON MOTION FOR DISCOVERY: COMPEL PLAINTIFF CATHERINE MOUTON'S FURTHER RESPONSE TO REQUEST FOR PRODUCTION OF DOCUMENT NO.1-5**

FILED BY: LI, HUAN

TENTATIVE RULING:

This hearing was advanced to July 15, 2026 and was heard with discovery motions pursued by Defendants. No appearance is required on July 22, 2026.

22. 9:01 AM CASE NUMBER: MSC21-00907

CASE NAME: HAU WING SEZTO VS. DAVID JUSTICE

***HEARING ON MOTION FOR DISCOVERY: HAVE MATTERS SPECIFIED IN REQUEST FOR ADMISSION TO BE DEEMED ADMITTED**

FILED BY: SEZTO, HAU WING "BONNIE"

TENTATIVE RULING:

Summary

Plaintiff Hau Wing "Bonnie" Sezto's Motion to Deem Matters Specified in Requests for Admissions Admitted and for Monetary Sanctions is unopposed and is **granted**.

Background

Plaintiff has filed a civil action against Defendant David Martin Justice ("Defendant") alleging sexual battery, intentional infliction of emotional distress, false imprisonment, battery, and negligence based on conduct occurring from approximately Plaintiff's age 10 through her late teens. Defendant, who is currently self-represented, is incarcerated at Ironwood State Prison following his June 12, 2023 conviction on twelve felony counts, including violations of Penal Code sections 288(c)(1) (lewd acts upon a child) and 261(a)(2) (forcible rape). He was sentenced to 44 years to life. While his appeal is pending, the conviction is final at the trial court level.

Plaintiff contends that the central liability issues have been conclusively established by Defendant's criminal conviction. With Defendant's guilt already adjudicated, the remaining questions for the civil jury are limited to the nature and extent of Plaintiff's injuries, the amount of compensatory damages, and the amount of punitive damages warranted by Defendant's conduct. Plaintiff contends that Defendant has assets exceeding \$10 million and that his conduct caused her injuries exceeding \$5 million.

The current dispute arises from Defendant's failure to respond to discovery propounded by Plaintiff. In July 2021, Defendant served discovery on Plaintiff, including a deposition notice, and Plaintiff has been diligent in timely responding to all of Defendant's discovery demands. Defendant initially sought a stay of his duty to respond to discovery based on self-incrimination concerns, and the court permitted him to object on that basis. Following his 2023 conviction, the Court finds that self-incrimination is no longer a valid concern.

On May 7, 2025, Plaintiff served written discovery on Defendant, including Requests for Admissions

(Set One, Nos. 1-35), which sought admissions regarding his conviction, the injuries he caused Plaintiff, and his assets. Responses were due no later than June 6, 2025. To date, Defendant has provided no responses to any of Plaintiff's written discovery demands. Plaintiff has attempted to meet and confer through multiple channels, including contacting Defendant's prior counsel, sending letters by first class mail to the prison facility, and speaking with prison personnel, but all efforts have been unsuccessful.

Plaintiff now moves for an order deeming the matters specified in the Requests for Admissions admitted and for monetary sanctions under Code of Civil Procedure section 2033.280(c). Plaintiff has incurred \$3,500 in attorneys' fees and costs to bring this motion and estimates an additional \$1,750 will be required to prepare a reply and attend the hearing. Plaintiff requests sanctions of \$3,500. The motion was served on Defendant's former counsel on April 22, 2026, and on Defendant at Ironwood State Prison by email and regular mail on April 23, 2026. No timely response has been filed.

ANALYSIS

Requests for Admissions

Pursuant to Code of Civil Procedure section 2033.280(b), if a party fails to respond to requests for admission, the propounding party may move to have the genuineness of documents and the truth of matters specified deemed admitted. The failure to timely respond also waives any objections, including privilege objections. Where responses are entirely absent, the court has no discretion to deny the motion. *Demyer v. Costa Mesa Mobile Home Estates* (1995) 36 Cal.App.4th 393, 395. Additionally, Code of Civil Procedure section 2033.280(c) requires the court to impose monetary sanctions on the party or attorney whose failure to serve a timely response necessitated the motion.

Self-Represented Litigant

A self-represented party "is to be treated like any other party and is entitled to the same, but no greater, consideration than other litigants and attorneys." *Williams v. Pacific Mutual Life Ins. Co.* (1986) 186 Cal.App.3d 941, 944. Thus, as is the case with attorneys, self-represented litigants must follow correct rules of procedure. *Nwosu v. Uba* (2004) 122 Cal.App.4th 1229, 1246-1247; *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985 ("mere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation"); *Leslie v. Board of Medical Quality Assurance* (1991) 234 Cal.App.3d 117, 121 (self-represented parties are held to "the same 'restrictive procedural rules as an attorney'"); *McComber v. Wells* (1999) 72 Cal.App.4th 512, 522-523.

Nevertheless, "trial judges must acknowledge that in *propria persona* litigants often do not have an attorney's level of knowledge about the legal system and are more prone to misunderstanding the court's requirements." *Petrosyan v. Prince Corp.* (2013) 223 Cal.App.4th 587, 594. When one party has counsel and the other does not, the trial court "should monitor to ensure the in *propria persona*

litigant is not inadvertently misled, either by the represented party or by the court. ... [S]pecial care should be used to make sure that verbal instructions given in court and written notices are clear and understandable by a layperson. This is the essence of equal and fair treatment, and it is not only important to serve the ends of justice, but to maintain public confidence in the judicial system." Ibid.

Here, there is no evidence that Defendant was misled by the court or Plaintiff. The motion and supporting papers were properly served, and Defendant has had ample opportunity to respond.

III. Failure to Oppose

California Rules of Court, rule 8.54(c) states that "[a] failure to oppose a motion may be deemed a consent to the granting of the motion." *Cravens v. State Bd. of Equalization* (1997) 52 Cal.App.4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 (where a party fails to file timely opposition to a motion, it is "well within" the court's discretion to determine that such failure is "tantamount to a concession that its position in the litigation was not substantially justified"); *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 (failure to address or oppose issue in motion constitutes waiver of that issue); *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784-785 (failure to support a point with reasoned argument and citations to relevant authority constitutes waiver).

Defendant's failure to timely oppose this motion is deemed consent to its granting.

Ruling

Having considered Plaintiff Hau Wing "Bonnie" Sezto's Motion to Deem Matters Specified in Requests for Admissions Admitted and for Monetary Sanctions, the supporting declarations and exhibits, and the applicable law, the Court hereby finds, concludes, and orders as follows:

1. Plaintiff's Motion is **granted**.
2. Plaintiff's Requests for Admissions of Fact and Genuineness of Documents to Defendant David Martin Justice, Set One, Request Nos. 1-35, are **deemed admitted** .
3. The documents attached to Exhibit 1 of the Requests for Admissions are **deemed genuine**.
4. Monetary sanctions in the amount of \$3,500 are awarded against Defendant David Martin Justice. Defendant shall pay sanctions no later than thirty (30) days from the date of entry of this order.
5. Plaintiff shall prepare and e-file a proposed order conforming to this ruling no later than five (5) days from the date of this order.

23. 9:01 AM CASE NUMBER: MSC21-01215

CASE NAME: LYNETTA WESTBROOK VS SAN PABLO HEALTH

***HEARING ON MOTION FOR DISCOVERY RELIEF FROM DEFENDANT'S MOTION TO DEEM REQUESTS FOR ADMISSIONS ADMITTED**

FILED BY: WESTBROOK, LYNETTA

TENTATIVE RULING:

Summary

Before the Court is Plaintiff Lynetta Westbrook's ("Plaintiff") Motion for Relief from Orders Deeming Requests for Admission Admitted and Awarding Sanctions. The motion is **denied**.